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Strategic Exam Preparation for Internationally Qualified Lawyers

◆ FREE SAMPLE CHAPTER ◆

ADMINISTRATIVE LAW

Chapter 1: Foundations of Canadian Administrative Law

*This is a free sample from the full NCA Hub strategic notes bundle.
The complete notes cover all exam topics with IRAC frameworks,
IF → THEN trigger tables, decision trees, and EXAM TRAP warnings.*

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PART I: FOUNDATIONS OF CANADIAN ADMINISTRATIVE LAW

Chapter 1: What is Administrative Law?

The Core Idea

Administrative law governs the exercise of statutory power by governmental and quasi-governmental bodies. When Parliament or provincial legislatures delegate decision-making authority to ministers, tribunals, agencies, municipal councils, regulatory boards, or public officials, administrative law provides the legal framework controlling how that authority is exercised.

Statutory Power: *Authority granted by a statute (also called an 'enabling statute' or 'parent statute') that allows a government body or official to make decisions, create rules, or take actions that affect individuals' rights, privileges, or interests.*

The fundamental question in every administrative law problem is: Did the decision-maker exercise their power properly? This question operates along two dimensions:

1. Procedural Fairness — Was the process fair? Did the decision-maker follow proper procedures, give adequate notice, provide an opportunity to be heard, and decide without bias?
2. Substantive Review — Was the outcome legally acceptable? Did the decision-maker interpret their authority correctly, consider relevant factors, and reach a reasonable conclusion?

The Architecture of Delegation

To understand administrative law, you must first understand how administrative bodies get their power. The Canadian constitutional structure creates a chain of delegation:

Step 1: The Constitution (Constitution Act, 1867) assigns legislative power to Parliament (federal) and provincial legislatures.

Step 2: These legislatures pass statutes creating administrative bodies and granting them specific powers.

Step 3: The administrative body exercises those powers to make decisions affecting individuals.

EXAM TIP: Identify the Decision-Maker First

Every exam answer must begin by identifying: (1) the specific decision-maker; (2) the enabling statute that creates their power; and (3) the specific decision being challenged. This demonstrates you understand the foundation of administrative law analysis.

Types of Administrative Decision-Makers

Administrative decision-makers come in many forms. On the exam, you must correctly identify the type of body you are analyzing:

Federal Administrative Bodies

- Immigration and Refugee Board of Canada (IRB) — decisions on refugee claims, admissibility, detention
- Canadian Human Rights Commission — investigates and adjudicates discrimination complaints
- Canadian Radio-television and Telecommunications Commission (CRTC) — regulates broadcasting and telecommunications
- Federal Ministers — exercise discretion under federal statutes (immigration, environment, transport)

Provincial Administrative Bodies

- Labour Relations Boards — adjudicate union certification, collective bargaining disputes
- Professional Regulatory Colleges — law societies, medical colleges, engineering regulators — license and discipline professionals
- Municipal Councils — zoning, planning, licensing decisions
- Provincial Human Rights Tribunals — adjudicate provincial discrimination complaints

Hybrid and Specialized Bodies

- Administrative tribunals with both policy and adjudicative functions (e.g., energy regulators, environmental assessment boards)
- Courts exercising administrative functions (e.g., specialized courts, judicial officers)

Tribunal: *A specialized decision-making body created by statute to adjudicate disputes in a particular area (immigration, labour, human rights, etc.). Tribunals are less formal than courts but exercise significant power over individuals.*

The NCA Administrative Law Examination

The NCA Administrative Law examination is a three-hour, open-book, fact-based assessment. Understanding the exam structure is essential to your preparation:

Exam Format

- Duration: 3 hours (180 minutes)
- Format: Open-book (you may bring printed notes, case summaries, and statutory excerpts)
- Structure: 3-4 complex fact patterns requiring memorandum-style legal analysis
- Mark allocation: Questions typically range from 15-30 marks each

What Examiners Are Looking For

The NCA exam tests your ability to:

1. Identify procedural fairness issues and apply the correct legal tests
2. Determine the appropriate standard of review using the Vavilov framework
3. Apply reasonableness or correctness review to the decision-maker's reasoning
4. Identify available remedies and recommend appropriate relief
5. Structure your answer as a coherent legal memorandum

EXAM TIP: Time Management is Critical

Allocate your time based on marks: a 20-mark question deserves approximately 36 minutes ($180 \text{ minutes} \div 100 \text{ total marks} \times 20 \text{ marks}$). Do not spend 45 minutes on a 15-mark question — you will run out of time for higher-value questions.

Chapter 2: The Three Pillars Framework

Every administrative law issue falls within one of three analytical categories. Master this framework to ensure comprehensive exam answers. The Three Pillars Framework is the foundation of administrative law analysis — it provides the structure for every exam answer you will write.

Pillar 1: Procedural Fairness

The first question in any administrative law analysis is: Did the decision-maker follow a fair process?

Procedural fairness concerns the manner in which a decision is made, not the substance of the decision itself. Even a substantively correct decision can be set aside if the process was unfair.

Key characteristics of procedural fairness analysis:

- Standard of Review: Correctness (courts give no deference to decision-makers on procedural questions)
- Key Tests: Knight three-prong trigger; Baker five-factor content analysis; reasonable apprehension of bias
- Sources: Common law (default), enabling statute, Charter section 7, Bill of Rights (federal), duty to consult (Indigenous rights)

EXAM TIP: Procedural Fairness Always Uses Correctness

A common exam error is applying reasonableness review to procedural fairness questions. The standard for procedural fairness is always correctness — courts do not defer to decision-makers on whether they followed fair procedures.

Pillar 2: Substantive Review

The second question is: Did the decision-maker reach a legally acceptable outcome?

Substantive review concerns the content of the decision — whether the decision-maker interpreted their authority correctly, considered relevant factors, and reached a reasonable conclusion.

Key characteristics of substantive review analysis:

- Standard of Review: Reasonableness (presumptive) or Correctness (exceptions)
- Framework: Vavilov standard of review selection and application methodology
- Focus: Statutory interpretation, fact-finding, discretion application, Charter values (Doré)

Pillar 3: Challenging Decisions and Remedies

The third question is: How does one challenge the decision, and what relief is available?

Once you have identified procedural and/or substantive defects, you must determine the proper mechanism for challenge and the appropriate remedy.

Key characteristics of challenges and remedies analysis:

- Mechanisms: Judicial review (inherent supervisory jurisdiction) vs. statutory appeal (legislative creation)
- Venue: Federal Court (federal bodies) vs. Provincial Superior Court (provincial bodies)
- Remedies: Certiorari (quash), mandamus (compel), prohibition (prevent), declaration (clarify rights)

The Standard Exam Answer Structure

Your exam answer should generally follow this sequence, addressing all three pillars comprehensively:

Section A: Procedural Fairness Analysis

1. Sources: Identify all applicable sources of procedural obligations (statute, common law, Charter s.7, etc.)
2. Trigger: Apply the Knight three-prong test to determine if procedural fairness is owed
3. Content: Apply the Baker five-factor test to determine what procedural protections are required
4. Breach: Analyze whether the required procedures were followed
5. Bias: Assess whether there is a reasonable apprehension of bias

Section B: Substantive Review Analysis

1. Forum: Determine whether challenge is by judicial review or statutory appeal
2. Standard Selection: Apply Vavilov to determine reasonableness vs. correctness
3. Application: Apply the selected standard to the decision-maker's reasoning

Section C: Remedial Analysis

1. Venue: Identify the correct court (Federal vs. Provincial Superior)
2. Standing: Confirm the applicant has standing
3. Remedy: Recommend appropriate remedy (certiorari, mandamus, prohibition, declaration)

EXAM TIP: Address All Three Pillars

It is not possible to pass the NCA Administrative Law exam by addressing only procedural fairness or only substantive review. You must analyze both. Most fact patterns contain issues in both categories — missing one category will significantly reduce your mark.

WATCH OUT: Do Not Skip the Trigger Analysis. Many students jump straight to 'the duty of procedural fairness requires...' without first establishing that the duty is triggered. Always begin with the Knight test when procedural fairness is at issue.

PART II: PROCEDURAL FAIRNESS

Chapter 3: Sources of Procedural Obligations

Procedural obligations may arise from multiple sources simultaneously. A thorough analysis identifies all applicable sources before determining the content of the duty. The sources operate in a hierarchy: statutory requirements set the floor; common law and constitutional requirements may supplement them.

Source 1: The Enabling Statute

The statute that creates the decision-maker's power (the 'enabling statute' or 'parent statute') is the primary source of procedural obligations. The legislature may specify:

- Notice requirements — who must be notified, in what form, and within what timeframe
- Hearing rights — whether oral hearings are required or permitted
- Disclosure obligations — what information must be shared with affected parties
- Timelines — deadlines for decisions, appeals, or applications for review
- Appeal mechanisms — whether statutory appeals are available and to which court

Complete Code: *A statute that provides a comprehensive, self-contained procedural scheme that is intended to be exhaustive. Where a statute is a 'complete code,' the common law duty of procedural fairness may be excluded or limited. However, courts interpret 'complete code' provisions narrowly — the statute must clearly indicate legislative intent to exclude common law fairness.*

EXAM TIP: Always Check the Statute First

Your procedural fairness analysis must always begin with the enabling statute. Statutory procedures set the minimum floor. If the statute is silent on a particular procedural matter, the common law duty of fairness fills the gap. If the statute is a 'complete code,' common law supplementation may be excluded.

Source 2: General Procedural Statutes

Some jurisdictions have general statutes that apply procedural requirements across multiple administrative bodies:

Ontario: Statutory Powers Procedure Act (SPPA), RSO 1990, c S.22 — applies to provincial tribunals exercising statutory powers of decision. The SPPA establishes default procedures

including notice requirements, hearing procedures, disclosure obligations, and decision-making requirements.

Quebec: Administrative Justice Act, CQLR c J-3 — provides procedural requirements for administrative decision-making in Quebec.

Federal: No equivalent general statute — federal administrative procedures are governed by the enabling legislation for each body and by the common law.

Source 3: Delegated Legislation and Guidelines

Decision-makers may adopt procedural rules through:

- Regulations — legally binding rules made under statutory authority
- Practice Guidelines — non-binding guidance that promotes consistency

While guidelines promote consistency and predictability, they are generally not legally binding in the same manner as statutes. However, departure from established guidelines without notice may engage legitimate expectations (see Chapter 4).

Source 4: The Common Law

The common law imposes a duty of procedural fairness independent of statute. This duty exists even where the enabling statute is silent on procedure. The modern common law duty originates in:

KEY CASE: *Nicholson v Haldimand-Norfolk Regional Board of Commissioners of Police*

Citation: [1979] 1 SCR 311

Context: A police officer was dismissed without a hearing. The Board argued that as an 'administrative' (not judicial) decision, no hearing was required.

Ratio: The rigid distinction between 'judicial' and 'administrative' functions is obsolete. The duty of procedural fairness applies to all decisions affecting rights, privileges, or interests, regardless of whether the function is characterized as judicial or administrative.

Exam Trigger: Use *Nicholson* to establish that the modern duty of fairness applies broadly, not just to judicial-type decisions.

The common law duty of fairness is the default source of procedural obligations. It applies unless:

- The enabling statute provides a 'complete code' that excludes common law supplementation
- The legislature has expressly or by necessary implication excluded the duty

Source 5: Charter Section 7

Section 7 of the Canadian Charter of Rights and Freedoms provides: 'Everyone has the right to life, liberty and security of the person and the right not to be deprived thereof except in accordance with the principles of fundamental justice.'

Section 7 applies only to decisions affecting:

- Life — rarely engaged in administrative law
- Liberty — includes freedom from physical restraint (e.g., immigration detention, imprisonment)
- Security of the person — includes physical and psychological integrity (e.g., deportation to persecution, forced medical treatment)

KEY CASE: *Singh v Minister of Employment and Immigration*

Citation: [1985] 1 SCR 177

Context: Refugee claimants challenged the denial of oral hearings in refugee determination proceedings.

Ratio: Section 7 requires that refugee claimants be given an oral hearing before a decision-maker. The principles of fundamental justice require procedural protections when life, liberty, or security of the person is at stake.

Exam Trigger: Use *Singh* to establish that s.7 requires oral hearings when credibility is central to the decision and life/liberty/security is engaged.

EXAM TIP: Charter s.7 is NOT a General Fairness Guarantee

Section 7 only applies to decisions affecting life, liberty, or security of the person. It does NOT apply to property rights, economic interests, or general unfairness. Do not invoke s.7 for routine licensing decisions or commercial disputes.

Source 6: The Canadian Bill of Rights

The Canadian Bill of Rights, SC 1960, c 44 applies only to federal decision-makers. Key provisions include:

- Section 1(a): Protects the right to 'life, liberty, security of the person and enjoyment of property'
- Section 2(e): Provides a right to 'a fair hearing in accordance with the principles of fundamental justice' before federal boards

The Bill of Rights is a statutory (not constitutional) document. It applies only to federal administrative bodies and can be overridden by express statutory language. However, where it applies, it provides procedural protections that may exceed the common law.

Source 7: Constitutional Duty to Consult Indigenous Peoples

Rooted in the honour of the Crown and section 35 of the Constitution Act, 1982, this duty applies when Crown decisions may adversely affect Aboriginal rights or title. The duty to consult is distinct from the common law duty of procedural fairness — it is a constitutional obligation with its own analytical framework.

KEY CASE: Haida Nation v British Columbia (Minister of Forests)

Citation: 2004 SCC 73

Context: The Crown approved tree farm licences on lands subject to unresolved Aboriginal title claims without consulting the Haida Nation.

Ratio: The Crown has a duty to consult Aboriginal peoples and accommodate their interests before making decisions that might adversely affect Aboriginal rights or title. The duty arises from the honour of the Crown and applies even where title has not been proven.